

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

Section 2.6 — Saskatchewan: *The Accessible Saskatchewan Act, 2023*

Section 2.5 documented the *Accessible British Columbia Act*, the most recent comprehensive provincial accessibility legislation enacted west of Manitoba. Section 2.6 turns to the most recent comprehensive provincial accessibility legislation enacted anywhere in Canada: *The Accessible Saskatchewan Act*, which received Royal Assent on May 17, 2023, and came into force on December 3, 2023. The Saskatchewan legislation is the current frontier of Canadian provincial accessibility statutory design. It also produces the analytic moment that compels Section 2.8's conclusion: with Saskatchewan's enactment, Alberta became the only English-speaking Canadian province west of Quebec without comprehensive accessibility legislation.

The Saskatchewan comparator is significant for this Part Two analysis for four specific reasons that compound across the prior comparator analyses.

First, Saskatchewan is Alberta's most structurally and politically similar provincial neighbour. The two provinces share a contiguous geographic boundary, a comparable agricultural and resource-extraction economic base, comparable rural-urban-northern population distributions, comparable Indigenous population shares, comparable fiscal cycles linked to commodity prices, and comparable provincial-government administrative scales. Saskatchewan's population is approximately 1.2 million, smaller than Alberta's 4.8 million but structurally proportionate to the relevant Alberta comparators in every other respect. Where Section 2.5 established that British Columbia — Alberta's western neighbour and the next-most-populous Western Canadian province — has comprehensive accessibility legislation, Section 2.6 establishes that Saskatchewan — Alberta's eastern neighbour and its closest political-cultural analogue — has comprehensive accessibility legislation. Alberta is not bracketed by jurisdictions that are structurally distinct. Alberta is bracketed by structurally similar jurisdictions that have made the opposite legislative choice.

Second, the Saskatchewan Act was enacted under a Saskatchewan Party government. The Saskatchewan Party is the dominant centre-right political coalition in Saskatchewan and is the Saskatchewan analogue of the United Conservative Party that holds government in Alberta. The Bill was introduced by Social Services Minister Gene Makowsky, a Saskatchewan Party cabinet minister, in fall 2022. The Bill received Royal Assent under the Saskatchewan Party government of Premier Scott Moe in May 2023. The Saskatchewan Party government has subsequently administered the Act, established the Saskatchewan Accessibility Office, appointed the inaugural Accessibility Advisory Committee in March 2024, published the first Government of Saskatchewan Accessibility Plan on December 3, 2024, and produced the first annual report under the Act. The legislation is, in this sense, a Saskatchewan Party legislative achievement, advanced and operationalized by the political party most ideologically and structurally similar to the governing party in Alberta. The "Conservative governments don't pass this kind

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

of legislation" argument, if such an argument has been made in Alberta political discourse, is not consistent with the Saskatchewan record.

Third, the Saskatchewan Act incorporates the documented learnings of the prior provincial frameworks. The Act's design includes the universal accessibility-plan requirement extending to public-sector bodies (drawing on the Ontario, Manitoba, Nova Scotia, and BC precedents); the recognition of sign languages including Indigenous sign languages (drawing on the federal ACA and BC precedents); the mandatory minimum 50 percent disability-community representation on the Accessibility Advisory Committee (drawing on the Nova Scotia precedent); the statutory consideration of the United Nations Convention on the Rights of Persons with Disabilities in standards development (drawing on the BC precedent); the multi-area standards-development scope (drawing on every prior comparator); and the multi-institution implementing architecture (drawing on every prior comparator). The Saskatchewan legislation represents the synthesis of nineteen years of accumulated Canadian provincial accessibility legislative experience, from Ontario's 2005 AODA through to the 2021 BC Act. Alberta, building eight years after Saskatchewan, would build with a further iteration of this accumulated knowledge available to it.

Fourth, the Saskatchewan Act's existence is the analytic precondition for the structural-isolation argument Section 2.8 will land. With Saskatchewan's enactment in 2023, every Canadian province from British Columbia in the west to Newfoundland and Labrador in the east, except Alberta and the Atlantic provinces of Prince Edward Island and New Brunswick, has comprehensive provincial accessibility legislation in operation. Alberta is geographically surrounded by jurisdictions with this legislative architecture and is the largest, wealthiest, and most institutionally capable Canadian province without it. The geographic, structural, political, and fiscal isolation of Alberta's position has no precedent in modern Canadian disability policy and no defensible explanation that does not reduce to the political choice the province has made.

Origin and Passage

The Bill that became *The Accessible Saskatchewan Act* originated as Bill 103, introduced in the Saskatchewan Legislative Assembly in fall 2022 under the Saskatchewan Party government of Premier Scott Moe. The Bill was advanced by Social Services Minister Gene Makowsky as a recommendation arising from the *2015 Saskatchewan Disability Strategy*, a multi-year strategic-planning process that had identified comprehensive accessibility legislation as a core deliverable for the province's disability-policy infrastructure. The Bill received cross-party support and Royal Assent on May 17, 2023, and came into force on December 3, 2023, simultaneously with the *Accessible Saskatchewan Regulations*.

The pre-legislative consultation process drew on the documented learnings of every prior Canadian comparator framework. The 2015 Strategy had established the substantive policy foundations. The Bill itself was developed with input from Saskatchewan's disability-community organizations including the Saskatchewan Voice of People with Disabilities, the Saskatchewan Council on Disability Issues, and provincial chapters of national disability-advocacy organizations including the CNIB, the Canadian Hard of Hearing Association, and the Saskatchewan Association for Community Living. The Bill's drafting reflects this consultation throughout, particularly in the substantive structuring of the Accessibility Advisory Committee membership requirements and in the standards-development process's mandatory

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

consideration of UN CRPD obligations.

The Saskatchewan Party government's role in advancing the Bill is the operationally significant fact for the comparator analysis. The Saskatchewan Party has held provincial government continuously since 2007, under Premier Brad Wall (2007-2018) and Premier Scott Moe (2018 to present). The Bill was introduced, debated, passed, and operationalized under the same governing party. There has been no change in governing party during the legislation's passage or implementation. The legislation is, in this respect, a sustained Saskatchewan Party legislative project rather than a project initiated under one government and continued under another. The legislative achievement is, accordingly, a centre-right Western Canadian provincial-government legislative achievement.

Subsequent operational steps have proceeded on schedule. The Saskatchewan Accessibility Office was established within the Ministry of Social Services in 2023 under the leadership of a Director appointed under Section 3-2 of the Act. Applications for membership on the inaugural Accessibility Advisory Committee opened in September 2023 with a deadline of October 15, 2023; the government received over 180 applications. The inaugural 15-member Committee was appointed on March 1, 2024, with majority disability-community representation (in keeping with the statutory requirement) and substantial geographic, demographic, and experiential diversity. The Government of Saskatchewan Accessibility Plan, the first such plan required by the Act, was published on December 3, 2024 — one year after the Act came into force, in compliance with the statutory timeline. Public-sector bodies designated under the Regulations are required to publish their own accessibility plans by December 3, 2025, two years after the Act's coming into force.

The implementation pace through the first two years of the Act's operation is, by the disability-community's documented assessment, faster than the pace observed under several earlier provincial frameworks. The Saskatchewan government's adherence to statutory timelines, its rapid appointment of the Advisory Committee, and its on-schedule publication of the inaugural Government Accessibility Plan together suggest a level of administrative commitment that supports rather than impedes the Act's operationalization. The pace will be subject to ongoing scrutiny in the years ahead, but the early operational record establishes that comprehensive accessibility legislation in Saskatchewan is being delivered on the timelines the legislation required.

The Act's Substantive Structure

The Accessible Saskatchewan Act is organized into seven parts: *Part 1* (preliminary matters, including definitions, principles, and the annual reporting requirement), *Part 2* (sign-language recognition and accessibility plan obligations), *Part 3* (the Saskatchewan Accessibility Office), *Part 4* (the Accessibility Advisory Committee), *Part 5* (accessibility standards), *Part 6* (compliance and enforcement, including inspectors), and *Part 7* (offences, administrative penalties, and appeals). The structural template is consistent with the prior provincial frameworks and reflects the documented design conventions for Canadian provincial accessibility legislation.

The Act's *substantive scope* covers six accessibility areas, identified as the standards-development priorities under the legislation. The areas are the *built environment*, *information and communications*,

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

employment, transportation, the delivery of goods and services, and the delivery of education programs and services. The Act explicitly contemplates additional areas being identified in the future. The six-area scope parallels the Nova Scotia framework's six-area structure (Section 2.4) and includes education as a stand-alone accessibility area, in keeping with the design choice Section 2.4 identified as the most consequential for an Alberta-equivalent statute. The inclusion of education as a stand-alone area in the most recent Canadian accessibility statute confirms that the design choice has become an established convention in Canadian accessibility legislative practice.

Section 2-1 of the Act recognizes sign languages as the primary languages for communication by Deaf persons in Saskatchewan, *including, without limitation: (a) American Sign Language; and (b) Indigenous sign languages.* The recognition parallels the BC Act's *without limitation* recognition framework (Section 2.5) and the federal ACA's recognition of ASL, LSQ, and Indigenous sign languages (Section 2.1). The convergence across recent Canadian accessibility statutes on the recognition of sign languages including Indigenous sign languages is now the established convention. Alberta-equivalent legislation must include this recognition.

Section 2-2 of the Act requires designated entities to develop accessibility plans that identify, remove, and prevent barriers. The first entity required to publish an accessibility plan under the Act is the Government of Saskatchewan, which published its plan on December 3, 2024. Public-sector bodies designated under the Regulations are required to publish their plans by December 3, 2025. The plan-publication requirement extends incrementally through regulation to additional categories of organizations as the implementation matures.

Part 5 of the Act, the standards-development part, includes a notable substantive provision: Section 5-2 requires the Accessibility Advisory Committee, in developing proposed accessibility standards, to consider the United Nations Convention on the Rights of Persons with Disabilities. The statutory consideration of the UN CRPD parallels the BC Act's structural innovation (Section 2.5) and operationalizes Canada's binding international treaty obligation under the CRPD at the provincial-statutory level. Section 2.7 examines the UN CRPD framework directly.

The Saskatchewan Accessibility Office and the Accessibility Advisory Committee

The Saskatchewan Act establishes two central operational bodies: the Saskatchewan Accessibility Office (SAO) and the Accessibility Advisory Committee (AAC).

The Saskatchewan Accessibility Office. The SAO is established under Part 3 of the Act, located within the Ministry of Social Services. The SAO is led by a Director appointed under Section 3-2 by the Minister of Social Services from among ministry employees. The Director is, by virtue of office, a non-voting member of the Accessibility Advisory Committee, providing a structural connection between the standards-development advisory body and the operational implementing office. The SAO's responsibilities are set out in Section 3-3 and include: advising the Minister on the development and review of accessibility legislation and standards, and on compliance and enforcement matters; supporting public awareness and education, including researching and providing training and resources to organizations; advising the

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Minister on the preparation of the annual report; monitoring inspector visits, orders, Director reviews, administrative penalties, and appeals; and receiving complaints regarding non-compliance. The SAO is the operational unit through which the Act's day-to-day implementation is coordinated.

The Accessibility Advisory Committee. The AAC is established under Part 4 of the Act. Section 4-2 requires the Committee to consist of *at least 9 and not more than 15 members*. Critically, Section 4-2(3) requires that *at least one-half of the members of the committee* must be persons with disabilities, or persons employed by or associated with organizations that support persons with disabilities. The 50-percent floor parallels the Nova Scotia framework (Section 2.4) and operationalizes the *Nothing Without Us* principle at the central standards-development advisory level. The Committee provides advice to the Minister on proposed accessibility standards, on the administration of the Act and the Regulations, on public awareness and education initiatives, and on other accessibility-related matters as the Minister requests.

The inaugural 15-member Committee was appointed on March 1, 2024 and represents a substantial range of lived disability experience, professional expertise, and Saskatchewan community geography. As Minister Makowsky stated publicly at the appointment, *all committee members are either a person with a disability, an immediate family member or support person of a person with a disability, or have experience working for an organization that supports people with disabilities*. The depth of disability-community representation on the Committee exceeds the 50-percent statutory minimum, with substantially more than half of the members identifying as persons with disabilities themselves and the remaining members possessing direct family or professional connections to the community. The Committee's composition is, in operational terms, the most disability-community-grounded provincial accessibility advisory body currently operating in Canada.

The Committee operates on two-year appointment terms with a maximum of two consecutive terms per member. The structural design ensures both continuity (members can serve up to four years) and rotation (no member is permanent), allowing the Committee to incorporate the perspectives of new community members on a regular basis while retaining institutional memory.

The Compliance and Enforcement Architecture

The Saskatchewan Act's compliance and enforcement architecture is set out in Parts 6 and 7. The architecture includes statutory authority for inspectors, compliance orders, administrative penalties, and appeals to the Court of King's Bench. The architecture parallels in structural design the equivalent architectures examined in Sections 2.1 through 2.5, with the Saskatchewan-specific implementation reflecting the smaller administrative scale of the Saskatchewan government relative to larger provincial counterparts.

Inspectors appointed under Part 6 have statutory authority to enter premises, examine documents, require the production of information necessary to determine compliance, and issue orders requiring corrective action. Section 6-8 prohibits obstructing an inspector. The Director, established under Part 3, may apply for a compliance order under Section 6-11 in cases where an inspector's order is not complied with.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Part 7 establishes the offence and administrative-penalty framework. Administrative penalties may be imposed for contraventions of the Act or the Regulations or for failures to comply with compliance orders. Appeals from administrative penalty determinations may be made to the Court of King's Bench. The structural design ensures both administrative efficiency (penalties may be imposed without full court proceedings) and procedural fairness (appeals are available to a superior court of inherent jurisdiction).

The compliance and enforcement record under the Saskatchewan Act is, in 2026, still in its early operational phase. The Act has been in force for less than three years. Public-sector accessibility plans are not required to be published until December 3, 2025. Standards have not yet been developed and enacted as regulations. The compliance and enforcement architecture exists in the statute but has not yet generated the volume of operational activity that would allow systematic evaluation of its effectiveness. The design will be tested as the implementation matures.

The relevant point for the Part Two comparator analysis is that the architecture exists in the statute. Saskatchewan has, in 2026, the operational framework that Alberta does not have. The architecture's eventual operational record will be a future evaluation question. The architecture's existence is the present comparator fact.

What the Saskatchewan Record Establishes

The Saskatchewan Act's first three years of operation establish findings that complete the comparator picture and that compound across the prior comparator analyses.

The first is that comprehensive accessibility legislation has been enacted, in the most recent Canadian iteration, by a centre-right Western Canadian provincial government. The Saskatchewan Party's introduction, passage, and operationalization of *The Accessible Saskatchewan Act* defeats every argument that comprehensive accessibility legislation is incompatible with conservative provincial governance. The Saskatchewan Party is the political party most ideologically and structurally similar to the United Conservative Party in Alberta. The Saskatchewan Party has built the legislation. The "this is a left-wing legislative project" argument, if it has been deployed in Alberta political discourse, is not consistent with the documented Canadian record.

The second is that the design knowledge has compounded across nineteen years of Canadian provincial accessibility legislative experience. The Saskatchewan Act incorporates structural elements from every prior framework: the universal accessibility-plan requirement (Ontario), the sequential standards-development model (Manitoba), the 50-percent disability-community representation requirement (Nova Scotia), the UN CRPD consideration (BC), the recognition of sign languages including Indigenous sign languages (federal ACA), and the multi-institution implementing architecture (every prior comparator). The Saskatchewan synthesis demonstrates that the design knowledge is mature, transferable, and cumulative. Alberta, building eight years after Saskatchewan, would build with a further iteration of this accumulated knowledge available to it. The blueprint Part Three develops will draw on the accumulated comparator design knowledge as direct precedent.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The third is that comprehensive accessibility legislation has been enacted by a province that is, by any reasonable structural measure, less institutionally capable than Alberta of operationalizing it. Saskatchewan's population is less than one-quarter of Alberta's. Saskatchewan's provincial fiscal capacity, particularly during periods of low commodity prices, is substantially smaller than Alberta's. Saskatchewan's provincial-government administrative scale is correspondingly smaller. None of these structural differences has prevented Saskatchewan from enacting and operationalizing comprehensive accessibility legislation. The structural arguments that might be made against Alberta's adoption of equivalent legislation do not survive contact with the Saskatchewan precedent.

The fourth is the structural-isolation finding the Saskatchewan analysis enables. Section 2.8 will land this argument in detail, but the analytic foundation is already clear. With Saskatchewan's 2023 enactment, Alberta is geographically surrounded by jurisdictions with comprehensive provincial accessibility legislation. British Columbia (Section 2.5) is to the west. Saskatchewan (Section 2.6) is to the east. Manitoba (Section 2.3) is east of Saskatchewan. Ontario (Section 2.2) is east of Manitoba. Nova Scotia (Section 2.4) is on the Atlantic coast. The federal ACA (Section 2.1) operates in the federal jurisdiction across all of these provinces and Alberta. Alberta is the only English-speaking Canadian province west of Quebec without comprehensive provincial accessibility legislation. The structural and geographic isolation of Alberta's position is unique in Canadian disability policy.

What This Section Establishes

The Accessible Saskatchewan Act, 2023, is the most recent comprehensive provincial accessibility legislation enacted anywhere in Canada and was advanced under a Saskatchewan Party government in Saskatchewan. The Act was passed by the political party most ideologically and structurally similar to the governing party in Alberta. The Act incorporates the documented design learnings of the prior nineteen years of Canadian provincial accessibility legislative experience. The Act establishes the Saskatchewan Accessibility Office, the Accessibility Advisory Committee (15 members, at least 50 percent disability-community representation, appointed March 1, 2024), the recognition of sign languages including Indigenous sign languages, the mandatory consideration of the UN CRPD in standards development, and a six-area substantive scope including education as a stand-alone accessibility area. The Act has produced, in its first three years of operation, an inaugural Government Accessibility Plan (published December 3, 2024), an annual reporting cycle, and an operational implementing infrastructure that proceeds on the statutory timelines.

Saskatchewan's population is approximately 1.2 million. Saskatchewan is Alberta's eastern neighbour, its closest political-cultural analogue, and its most structurally similar Canadian province. Saskatchewan has comprehensive provincial accessibility legislation. Alberta does not.

Section 2.7 examines the international framework that Canada has bound itself to and that every Canadian province operates under: the *United Nations Convention on the Rights of Persons with Disabilities* and its operational obligations. The CRPD framework establishes the international-law context within which Alberta's policy choices are evaluated and within which the Alberta Disability Rights argument operates. The CRPD is the substantive standard against which the comparator-jurisdiction frameworks examined in Sections 2.1 through 2.6 have been built. Section 2.7 documents what that standard requires

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

and what Alberta's failure to meet it implicates.